

TAB 24



Board of Education Report

File #: Res-028-23/24, Version: 1

Dr. Rivas - Supporting Assembly Constitutional Amendment No. 16 (ACA 16), the Green Amendment, to Codify the Right to Clean Air, Water, and a Healthy Environment for Every Californian (Res-028-23/24) (Noticed May 7, 2024)

Whereas, The Los Angeles Unified School District is committed to the health, well-being, and academic success of all students;

Whereas, The District has established a strong foundation for environmental stewardship through a series of impactful resolutions, including commitments to 100% clean energy (Res-018-19/20), extensive campus greening by 2035 (Res-002-22/23), and ensuring every student receives annual outdoor and climate literacy education (Res-016-21/22), demonstrating the District's unwavering dedication to fostering a healthy learning environment and a sustainable future for all;

Whereas, The District's 2022-26 Strategic Plan prioritizes student success in a sustainable future, the District recognizes the profound impact of a healthy environment on student learning and well-being, particularly through the development of safe and sustainable green spaces in schools as outlined in Pillar 2: Joy and Wellness - Welcoming Learning Environments;

Whereas, Students in low-income communities and communities of color are disproportionately impacted by environmental injustices, including higher levels of air and water pollution, limited access to green spaces, and the brunt of climate change effects;

Whereas, These environmental injustices negatively impact student health, leading to increased asthma rates, respiratory illnesses, and developmental problems;

Whereas, Access to clean air, water, and green spaces is crucial for students' cognitive function, stress reduction, and physical activity, all of which are essential for learning and development;

Whereas, ACA 16 (Bryan), also known as the Green Amendment, proposes to amend the California Constitution to establish a fundamental right to a clean and healthy environment for all Californians; and

Whereas, Enshrining this right in the state constitution would provide a stronger foundation for existing environmental legislation and guide future policy decisions that prioritize environmental justice and the health of all Californians; now, therefore, be it

Resolved, That the Governing Board of the Los Angeles Unified School District hereby strongly supports the passage of ACA 16;

Resolved further, That the Board urges the California Legislature to pass ACA 16 and Governor

Newsom to sign it into law; and, be it finally

Resolved, That the Board hereby directs the Superintendent and the District's Office of Government Relations to transmit a copy of this Resolution to the Speaker of the Assembly, the President pro Tempore of the Senate, each member of the California State Legislature representing a district within the boundaries of the LAUSD, and Governor Newsom.



INTEROFFICE CORRESPONDENCE
Los Angeles Unified School District
RESOLUTION IMPACT STATEMENT

TO: Members, Board of Education
Alberto M. Carvalho, Superintendent

DATE: 05/24/24

FROM: David D. Hart, Chief Financial Officer *David D. Hart*
Office of Chief Financial officer

SUBJECT: ASSEMBLY CONSTITUTIONAL AMENDMENT NO. 16 (ACA 16), THE GREEN AMENDMENT, TO CODIFY THE RIGHT TO CLEAN AIR, WATER, AND A HEALTHY ENVIRONMENT FOR EVERY CALIFORNIAN (RES-028-23/24)

VERSION: 1

PRESENTED BY: Dr. Rocio Rivas

Date Noticed:	5/15/2024	Date Presented to Board for Action:	6/4/2024
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- ☐ After reviewing the resolution mentioned above our office/division has determined that an impact statement is **NOT** applicable.
- ☒ After reviewing the resolution mentioned above our office/division is providing the following impact statement.

If you have any questions, please contact the following staff:

Name & Title: Michael Villaroman, Assistant Budget Director

Telephone: (213) 241-2113 **Email:** michael.villaroman@lausd.net

RESOLUTION IMPACT

Type of Impact Statement:

☒ BUDGET

BUDGET IMPACT:

This resolution states that the Board of Los Angeles Unified supports the passage of ACA16 and urges the California Legislature to pass this amendment and for Governor Newsome to sign it into law. The Board directs the Superintendent and the District's Office of Governmental Relations to transmit a copy of this Resolution to the Speaker of the Assembly, the President pro Tempore of the Senate, each member or the California State Legislature representing a district within the boundaries of LAUSD, and Governor Newsom.

The section below applies to all impact statements.

Please indicate if proposed actions above will be completed with current resources or if additional resources will be required, i.e., staff, funding, etc. (Please connect with Budget if funding impact)

Current program budgets will be leveraged to implement these policies. At this time there is no quantifiable budget impact.



INTEROFFICE CORRESPONDENCE
Los Angeles Unified School District

RESOLUTION IMPACT STATEMENT

TO: Members, Board of Education
Alberto M. Carvalho, Superintendent

DATE: 05/16/24

FROM: Martha Alvarez, Chief of Legislative Affairs and Government Relations
Office of Government Relations

SUBJECT: RES-028 SUPPORTING ASSEMBLY CONSTITUTIONAL AMENDMENT NO. 16 (ACA 16), THE GREEN AMENDMENT, TO CODIFY THE RIGHT TO CLEAN AIR, WATER, AND A HEALTHY ENVIRONMENT FOR EVERY CALIFORNIAN

VERSION: 1

PRESENTED BY: Rivas

Date Noticed:	5/7/2024	Board Action Date:	6/4/2024
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- ☐ After reviewing the resolution mentioned above our office/division has determined that an impact statement is **NOT** applicable.
- ☒ After reviewing the resolution mentioned above our office/division is providing the following impact statement.

If you have any questions, please contact the following staff:

Name & Title: Sasha Horwitz, Legislative Advocate

Telephone: 213-241-8283 **Email:** Sasha.horwitz@lausd.net

RESOLUTION IMPACT

Please complete the sections applicable to your impact statement, and **delete non-applicable areas.**

Type of Impact Statement:

- ☐ BUDGET ☐ LEGAL ☒ OPERATIONAL POLICY & STUDENT IMPACT

OPERATIONAL IMPACT:

Space Impact: ☐ Yes ☒ No If yes, please describe

Policy Impact:

Assembly Constitutional Amendment (ACA) 16 amends Section 1 of the California State Constitution, Declaration of Rights, to declare that the people of California have a right to clean air and water and a

healthy environment. An ACA must have support of 2/3 of each house to pass the Legislature. Next, voters must ratify the amendment on a statewide ballot. The Governor does not have the opportunity sign or veto legislature-originated constitutional amendments.

ACA 16 is a “Green Amendment,” like those adopted by Pennsylvania in 1971, Montana in 1972, and New York in 2021. At least nine other states are considering “Green Amendments” this year. Green Amendments attempt to protect the right to clean air, clean water, and a healthy environment, the way more traditional rights like religious freedom and free speech are protected.

In the first ever “Green Amendment” trial, students in Montana successfully sued the state in 2023 arguing that the state’s energy policy violated their constitutional right to “a clean and healthful environment.”

The California Chamber of Commerce opposes ACA 16 citing unintended negative consequences and claiming California’s existing local, state, and federal environmental laws and regulations already provide equivalent protections to residents as ACA 16. As such, they argue a broad interpretation of ACA 16 would likely hinder economic development and the development of key infrastructure projects due to increased litigation and project delays. Since the constitutional provision is short, it could leave room for varying interpretations that could result in costly litigation, or the Legislature may need to consider adopting new laws in the future to help make this language operational.

The specific impacts for Los Angeles Unified are unknown at this time since the legislature measure is short and broad.

The section below applies to all impact statements.

Please indicate if proposed actions above will be completed with current resources or if additional resources will be required, i.e., staff, funding, etc. (Please connect with Budget if funding impact)

If the Board adopts this resolution, the Office of Government Relations will pursue this advocacy in support of the legislative measure within our existing resources.